PANASHE ALITABU
Versus
THE STATE

HIGH COURT OF ZIMBABWE
MUZOFA & BACHI MZAWAZI JJ
CHINHOYI 26 November 2025

Criminal Appeal

Appellant in person
K. Teveraishe, for the State

MUZOFA J

[1] This appeal against conviction was dismissed in an *ex-tempore* judgment. The appellant requested for the written reasons which are provided herein.

[2] The appellant appeared before a Magistrate sitting at Chinhoyi Magistrates Court facing one count of stock theft in contravention of s114 (2) (a) (i) of the Criminal Law Codification and Reform Act [*Chapter 9:23*].

[3] The allegations are that, on the 5th of September 2023 at Gambuli Farm Settlement the appellant stole one brown hornless ox and one black cow belonging to Blessing Chamunokora. The two beasts were valued at US$800.00 and were recovered.

[4] The appellant was arrested and appeared before the Magistrate. He pleaded guilty to the charge. He was sentenced to 9 years imprisonment.

[5] For reasons known to him, the appellant noted the appeal against conviction. The grounds of appeal lack substance to impugn the merits of the case. They address the procedural aspects of the proceedings. I reproduce them to put the point into perspective.

1. The court *a quo* erred by failing to explain the essential elements of the offence to the accused.

2. The court *a quo* made a gross irregularity by failing to record each and every question put to the accused during the inquiry in terms of s271 (2) (b) of the Criminal Procedure and Evidence Act [Chapter 9:07].
3. The court *a quo* erred by not ascertaining whether the plea of guilty was wilfully and voluntarily entered by the appellant.
4. The court *a quo* made gross irregularity by not ascertaining whether external influences caused the plea of guilty.

Relief Sought

5. It is the appellant's fervent prayer that the honourable court finds favour with the merits of his grounds of appeal and quashes the conviction and grants appellant his acquittal.

[6] From the four grounds of appeal against conviction, the appellant does not refer to any misdirection on the merits, which would be an uphill since he pleaded guilty to the charge.

[7] The appeal impugns the procedural aspects of the proceedings. Where a convicted person complains of some procedural irregularities, he/she can seek relief by way of review as opposed to an appeal.

[8] Both an appeal and review seek to set aside the proceedings. The difference is the basis of such a request. In a review, the basis is derived from the applicable procedure in coming to the decision which could be gross irregularities, bias, lack of jurisdiction, as provided in s27 of the High Court Act. In other words, a review concerns itself with the method used to reach a decision. On the other hand, an appeal is restricted to the merits, on both the factual and legal findings by the court *a quo*. If a wrong decision was made regard being had to the facts or the applicable law, then that is an issue best dealt with on appeal. Where the complaints arise from the method used to arrive at the decision, then a review is the appropriate cause.

[9] Strictly speaking there is no appeal before us. Even if the court would exercise its review powers and consider the matter, there is no basis to interfere with the proceedings.

[10] Despite the fact that the appellant pleaded guilty before the court a quo, there is ample authority that he can still appeal against that conviction.

[11] Cases such as *S* v *Kwainona and Others* 1993 (2) ZLR 345 (S), *S* v *Mudzingwa* 1999 (2) ZLR 255, *R* v *Mamba* 1957 (2) SA 420 are authority that where there has been a plea of guilty an appeal against conviction can still be entertained in exceptional circumstances where from the words of the accused in pleading to the charge, it is shown that the accused was raising some defence which could legitimately be raised to the charge. Such an appeal is treated as an application for change of plea.

[12] The proper approach by such an appellant is to draw the appeal court's attention to the responses that *prima facie* would have given rise to a valid defence.

[13] Where the applicant was not legally represented in the court *a quo*, the appeal court may exercise its review powers to guard against miscarriage of justice.

[14] In *Kambarami* v *The State* HB 119/20 the appeal court allowed an appeal against conviction where the accused had pleaded guilty to a charge of theft. The record of proceedings showed that when he was asked whether he had authority to take the property, he indicated that he had been given the property.

[15] In this case, there was nothing in the record of proceedings to show that the appellant could have a possible defence.

[16] He relied on some extraneous factors that could not have been within the trial court's contemplation or knowledge unless the appellant had advised the court.

[17] The State opposed the appeal and submitted that there were no procedural irregularities.

[18] Before us, the appellant who appeared in person and obviously not schooled on procedure addressed the court. He submitted that he was assaulted by the police, and that they were in court during the plea recording. In our view, he says their presence swayed his will power to plead as he pleased.

[19] A Magistrate Court is a court of record. A Magistrate is a Court official, and is reposed with the duty to record the court proceedings as accurately as possible. The recording by the Magistrate is therefore *prima facie* a true reflection of what transpired before the court until proven otherwise.

[20] The appellant did not even motivate the ground of appeal that the court *a quo* did not record all the questions. This court was left at sea, bereft of any idea of what transpired or asked

but not recorded. We expected the appellant to relate to some questions he asked or his responses that were not recorded to show that the Court *a quo* failed to properly discharge its duty to record.

[21] Further to that, the record speaks for itself to dispel the appellant's contrived grounds of appeal. The following exchange is informative; I reproduce the relevant part only.

Court: Any complaints against the police.
A. No.
PP: Charge read
Court: It is alleged you took two cattle belonging to complainant intending to permanently deprive him of his ownership. How do you plead?
A. I admit.
Plea guilty s27 (2) (b)

Facts read and understood
Q. Any variations?
A. None
Essential elements
Q. Correct on 4-5th September 2023 you went to Gambuli farm?
A. Yes.
Q. Correct you took two cattle a brown hornless ox and one black cow with horns belonging to complainant?
A. Yes.
Q. How did you take the cattle?
A. The complainant would give us his cattle to use at our fields so I knew he had cattle and I went to take from his kraal.
Q. What did you want to do with the cattle?
A. To sell them.
Q. Correct by so doing you knew or realized complainant would be permanently deprived of his ownership.
A. Yes.
Q. Any right to act in that manner?
A. No.
Q. Any defence to offer?
A. No.
Q. Is your admission of guilty an admission of all facts and essential elements to charge?
A. Yes

[22] In canvassing the essential elements the court complied with the law of procedure. It questioned the appellant whether he was at the scene of crime and the date, whether he took the specifically described beasts, how he took the beasts, and his intention. All the questions were affirmative. Lastly the court asked the last question to confirm the genuineness of the plea. He confirmed. It would be incomprehensible to accept that the appellant did not plead

guilty to the charge. He was even asked if he had any complaints against the police. He had none. To turn around and impugn the court *a quo* that it did not ascertain all the relevant issues is mischievous. He had ample opportunity to advise the court on the alleged assaults by the police; he did not do so.

[23] We found the appeal devoid of merit and issued the following order,

The appeal be and is hereby dismissed.

National Prosecuting Authority, the State's legal practitioners

Bachi- Mzawazi J Agrees